WAREHAM TOWN CLERK
2024 AUG 15 AM8:38

TOWN OF WAREHAM
CONSERVATION COMMISSION MINUTES MEETING
HELD IN ROOM 320 MULTI-SERVICE CENTER AS WELL AS VIA ZOOM
MAY 1, 2024

1. CALL TO ORDER BY CHAIR – 6:00 PM

2. ROLL CALL:

Members Present:	Sandra Slavin, Chair
	Carol Malonson, Clerk
	Autumn Wood
	Jessica Parr
	Paula J. O'Neill
	Michael Mercier
Also present:	Denise Schulz, Associate member
	Joseph Stiff, Associate member
	Donna Colbert, Associate member
	Joshua Faherty, Conservation Administrator
Absent:	Kwamie Bartie, Vice Chair

3. PUBLIC HEARINGS 6:00 PM

Request for Determination of Applicability (RDA):

1. **Pinehurst Beach Association, 114 Pinehurst Drive – RDA – 44** – Remove and replace a 4x6 deck/egress platform and six steps. The structure will be attached to the existing slab. There will be no earthwork. Debris will be removed from the site after the job. All work will comply with CMR 20 Mass. State Building Code. Additionally, add sand to the property within the seawall and fence area.

Motion to Open Hearing: Ms. Malonson motioned to open the hearing. Seconded by Ms. Wood and passed unanimously. (6-0-0)
Present before the Commission: David Moore, Trustee and Kevin Murphy, Trustee of the PBA
Discussion ensued.
No public comment.
Motion to Close Hearing: Ms. Malonson motioned to close the hearing. Seconded by Ms. Wood and passed unanimously. (6-0-0)

MOTION TO APPROVE: Mr. Mercier motioned to issue as a Negative 2. Seconded by Ms. Wood and passed unanimously.
VOTE: 6-0-0

2. **Grace Lighthouse Fellowship, 2703 & 2703R Cranberry Highway – RDA – 42**- Proposed church/place of worship

Motion to Open Hearing: Ms. Malonson motioned to open the hearing. Seconded by Ms. Wood and passed unanimously. (6-0-0)
Present before the Commission: Jack Savastano, Member of the Church.
Discussion ensued.
Members shared concerns that the property should've been staked out.
No public comment.

Motion to Close Hearing: Ms. Wood motioned to close the hearing. Seconded by Mr. Mercier and passed unanimously. (6-0-0)

MOTION TO APPROVE: Ms. Wood motioned to approve as a Negative 1. Seconded by Ms. Malonson. **VOTE: 6-0-0,** passed unanimously.

3. **Russell J. Motto, 31 Twelfth Street – RDA – 43** – Post Facto approval for reconfigured deck, stoop, landing and steps

Motion to Open Hearing: Ms. Wood motioned to open hearing. Seconded by Ms. Malonson and passed unanimously. (6-0-)
Present before the Commission:
Motion to Table: Mr. Mercier motioned to table hearing. Seconded by Ms. Malonson and passed unanimously. (6-0-0)
Motion to untable: Ms. Wood motioned to untable. Seconded by Mr. Mercier. Passed unanimously, via roll call vote. (6-0-0)

Motion to open hearing: Ms. Wood motioned to open the hearing. Seconded by Ms. Malonson. Passed unanimously via roll call vote. (6-0-)
Present before the Commission: Brad Bertolo, JC Engineering.
Discussion ensued.
Members requested signs added to posts regarding Wetlands. Discussion of fines for after-the-fact filing.
The Conservation Administrator recommended issuing Negative 3, adding three conservation signs to the post rail fence to be done before issuance of Compliance; after the fact filing to double the filing fee of $75. And $200 for work that was done which would've been approved.

Motion to close the hearing: Ms. Malonson motioned to close the hearing. Seconded by Ms. Wood and passed unanimously. (6-0-0)

MOTION TO APPROVE: Ms. Wood motioned to approve a Negative 3, adding three conservation signs to the post rail fence to be done before the issuance of a Certificate of Compliance, issue a fine for the after-the-fact filing fee of double the filing fee of $75., along with a $200 fine for work which would've been approved.
VOTE: 6-0-0

4. **Kristin Soby, 6 Riplah Road – RDA – 41** – A small extension on the south side will accommodate interior stairs and a land. The existing exterior stairs, shed and storage bin on the north side will be replaced with a wood deck.

Motion to Open Hearing: Ms. Wood motioned to open the hearing. Seconded by Ms. Malonson, and passed unanimously. (6-0-0)
Present before the Commission: Kirstin Soby, Homeowner.
Discussion ensued.
Member Mercier asked if there were any historic restrictions, but there were none identified.

Erosion control request by Conservation Administrator.
No public comment.

Motion to Close the Hearing: Ms. Wood motioned to close the hearing. Seconded by Mr. Mercier, passed unanimously. (6-0-0)
MOTION TO APPROVE: Ms. Wood motioned to approve as a Negative 3 with the condition of erosion control. Seconded by Ms. Malonson.
VOTE: 6-0-0

Notice of Intents (NOI)

1. **Elise Leduc-Fleming, 120 Cromesett Road – NOI -57** – Resurface a parking area and path with ¾" processed gravel to create an ADA-accessible public path to a salt marsh viewing area with a bench and split rail fence within the buffer zone to the salt marsh and within a flood zone. The project will also involve minor vista pruning and long-term invasive plant species management.

Motion to open the hearing: Mr. Mercier motioned to open the hearing. Seconded by Ms. Wood and passed unanimously. (6-0-0)
Present before the Commission: Elise Leduc-Fleming
Discussion ensued. Ms. Leduc-Fleming asking for continuous vista pruning. No DEP file number to date. Request continuance to come back with a revised plan.

MOTION TO CONTINUE: Ms. Malonson motioned to continue to May 15, 2024. Seconded by Mr. Mercier.
VOTE: 6-0-0

2. **Cherye Poyant, 16 Old Wood Road – NOI-59** – Install a 3' high, 39' long, 6x6 wood landscape retaining wall. Replace the existing retaining walls by the back window. Loam and hydroseed the back of the house and install a swale along the property line.
   MOTION to open the hearing: Ms. Malonson motioned to open the hearing. Seconded by Mr. Mercier and passed unanimously. (6-0-0)

Present before the Commission: Rene & Cherye Poyant
Discussion ensued.
Members shared concerns that the lot wasn't staked and also requested straw bales for erosion control. Member requested dry well.

The Conservation Agent stated all work was being done outside the 30' no activity zone.
Motion to close the hearing: Ms. Wood motioned to close the hearing. Seconded by Ms. Malonson and passed unanimously. (6-0-0)

MOTION TO APPROVE: Ms. Wood motioned to approve with the standard order of conditions, noting condition #15; and a special condition to control erosion North corner in front of the pond. Seconded by Mr. Mercier.
VOTE: 6-0-0

IV. CONTINUED PUBLIC HEARINGS 6:30 P.M.

Request for Determination of Applicability (RDA)

Notice of Intents (NOI)

1. **Prime Engineering, 370 County Road – NOI-17** To construct a large-scale ground-mounted photovoltaic solar array. (2809) (Continued to May 15, 2024)

2. **Sandy Beach Association of Point Independece Inc., 14 Cove Street – NOI-33** – Beach nourishment from High-Tide landward with sands of similar grain size will be utilized.

Present before the Commission: Gary Learner, President; Peggy Tingloff, Steve Murphy
Discussion ensued.
Members shared concerns about two benches that were installed close to the water are in violation. They explaind "after the fact filing."

Motion to close the hearing: Ms. Wood motioned to close the hearing. Seconded by Ms. Parr and passed unanimously. (6-0-0).

MOTION TO APPROVE: Ms. Malonson motioned to issue a standard order of conditions, to limit sand to 12 cu yards; issue a fine of $300 for work that wouldn't have been approved, and issue a fine of $100 for after-the-fact filing. Seconded by Ms. Wood

VOTE: 6-0-0

3. **David Darling 3031, 3033, 3036, 3039 Cranberry Highway – NOI 49** – Redeveloping the parking area adjacent to Water Wizz Water Park to expand, improve, and reconfigure it to address public safety concerns. The proposed wetland replication is at a 1:1 ratio. (continued to May 1, 2024)

Motion to continue: Ms. Wood motioned to continue to June 5, 2024. Seconded by Ms. Malonson and passed unanimously. (6-0-0).

4. **Jason T. Nelson, 8 Over Jordan Road – NOI -50** – Construction and maintenance of a new four-bedroom single-family home on piles with a deck, stairs, elevated A/C and generator units, a Title 5 sewage disposal system, a gravel driveway, associated utilities, and all grading, landscaping and associated appurtenances. The existing shed will remain.

Present before the Commission: Lori Macdonald, Cape & Islands Engineering.
Discussion ensued. The revised plan has been submitted
No public comment.

The Conservation Administrator recommended approval with the standard order of conditions.
Motion to close the hearing: Ms. Wood motioned to close the hearing. Seconded by Ms. Malonson and passed unanimously. (6-0-0)

MOTION TO APPROVE: Ms. Wood motioned to approve with the standard order of condition, noting only organic fertilizer be used. Seconded by Ms. Malonson.
VOTE: 6-0-0

5. **Jason T. Nelson, 10 Over Jordan Road – NOI 51** – Construction and maintenance of a new four-bedroom single-family home on piles with a deck, stairs, elevated A/C and generator units, a Title 5 sewage disposal system, a gravel driveway, associated utilities and all grading, landscaping and associated appurtenances.

Present before the Commission: Lori Macdonald, Cape & Island Engineering
Discussion ensued.
The Conservation Agent recommended approval with the standard order of conditions.
Motion to close the hearing: Ms. Wood motioned to close the hearing. Seconded by Ms. Malonson and passed unanimously. (6-0-0)
MOTION TO APPROVE: Ms. Wood motioned to approve with the standard order of conditions. Seconded by Ms. Malonson.
VOTE: 6-0-0

6. **Richard England, 4 Over Jordan Road – NOI 52** – Construction and maintenance of a new four-bedroom single-family home on piles with a deck, stairs, elevated A/C and generator units, a Title 5 sewage disposal system, a gravel driveway, associated utilities, and all grading, landscaping, and associated appurtenances. The existing shed will remain.
   Present before the Commission: Rick England, Trevor England & Lori Macdonald of Cape & Island Engineering.

   The Conservation Administrator recommended approval with a standard order of conditions.

Via Zoom Mark Zibb, Cape & Islands Engineering clarified the elevation

Motion to close hearing: Ms. Wood motioned to close the hearing. Seconded by Ms. Malonson and passed unanimously via roll call. (6-0-0)

MOTION TO APPROVE: Ms. Wood motioned to approve with the standard order of conditions. Seconded by Ms. Malonson. Roll call vote.
VOTE: 6-0-0

7. **172 Great Neck Road – NOI 53** – Construction and maintenance of a new four-bedroom single-family home on piles with a desk, stairs, elevated A/C and generator units, a Title 5 sewage disposal system, a gravel driveway associated utilities, and all grading, landscaping, and associate appurtenances.
Present before the Commission: Lori Macdonald, of Cape & Islands Engineering in the room with Mr. Trevor England and Mr. Rick England. Via Zoom, Mark Zibb of Cape & Islands Engineering.
Discussion ensued.

Motion to close: Ms. Wood motioned to close the hearing. Seconded by Ms. Malonson and passed unanimously via roll call vote. (6-0-0)

The Conservation Administrator recommended approval with the standard order of conditions.

MOTION TO APPROVE: Ms. Wood motioned to approve with the standard order of conditions. Seconded by Ms. Parr.
VOTE: 6-0-0 via Roll call vote, and passed unanimously.

8. **Continental Marina Corp., 3236 Cranberry Highway – NOI 55** – Replace a deteriorated wood bulkhead with a vinyl sheet bulkhead. Sheet piles will be vibrated or driven into the ground. An existing concrete boat ramp will be removed, the area filled and pavement added to match adjacent areas. A wood timber guardrail will be installed. Portions of the parking lot adjacent to the bulkhead will be re-paved.
Present before the Commission: Brian Grady, GAF Engineering. He confirmed no dredging is part of the plan.
Discussion ensued.

The Conservation Administrator recommended approval with a reference to the April 17, 2024, DFM letter.

Motion to close: Ms. Wood motioned to close the hearing. Seconded by Ms. Malonson and passed unanimously. (6-0-0)
MOTION TO APPROVE: Ms. Wood motioned to approve with the standard order of conditions and with any other conditions that may be listed in the DFM letter dated, April 17, 2024. Seconded by Ms. Malonson.
VOTE: 6-0-0

V. AMENDED ORDER OF CONDITION REQUEST

VI. EXTENSION REQUESTS

VII. CERTIFICATE OF COMPLIANCE REQUESTS

1. **30 Twelfth Street** – SE 076-2401

After issuing of RDA, the Certificate of Compliance would be approved.

MOTION TO APPROVE: Ms. Malonson motioned to issue the certificate of compliance requests pending the confirmation of the RDA. Seconded by Ms. Wood.
VOTE: 6-0-0

VIII. REVIEW OF ENFORCEMENTS

1. **Canedy Street, LLC, 4 Canedy Street, Wareham MA** – Construction of retaining walls and grading within a 100 – ft buffer to a Coastal Bank and Salt Marsh. Update only.

2. **Eryk Grassie, 50 Shangri-La Boulevard, Wareham, MA** – Demolition, construction, and site work within a 100-ft buffer to Glen Charlie Road.

3. **37 Pine Lane Drive, Wareham MA** – Expansion and renovation of a structure and deck, removal of trees within the 100-foot Buffer to Spectacle Pond

4. **Discussion: 2530 Cranberry Highway, Wareham MA** – Compliance with Order of Conditions issues 7/14/24 – SE 076-2755

IX. REPORT OF THE CONSERVATION ADMINISTRATOR

1. **Administrative Approvals**
2. **Bylaw Revisions Update**
3. **Workshop Permits – Notice of Intent (NOI)**

The Conservation Agent explained he recently updated the instructions to RDAs regarding staking of the property.

X. CONSENT AGENDA

1. **Review and accept minutes** – March 20, 2024, April 3, 2024 and April 17, 2024
   March 20, 2024 Minutes previously accepted.

   Ms. Slavin reported minutes will be changing across the board with a limited summary. Discussion ensued. Meetings can be reviewed at Wareham TV YouTube.

2. **Bills**

3. **Appointments, Interviews and Reappointments**

XI. *Any other Conservation Commission business not reasonably anticipated 48 hours prior to the posting of this meeting.*

XII. **Adjournment** Ms. Wood motioned to adjourn at 7:46p.m. Seconded by Ms. Malonson and passed unanimously. (6-0-0)

XIII. **Signing of Documents Approved by the Commission**

Respectively submitted,
Patricia A Pacella
Recording Secretary

Attest SSS Clerk, Date 8/14/24

Documents used or referred to in the meeting:
Pinehurst Beach Association, 114 Pinehurst Drive
Grace Lighthouse Fellowship, 2703 & 2703R Cranberry Highway
Russell J Motto, 30th Twelfth Street
Kristin Solby, 6 Riplah Road
Elise Leduc-Fleming, 120 Cromesett Road
Cherye Poyant, 16 Old Woods Road
SBA, 14 Cove Street
Jason T Nelson, 8 Over Jordan Road
Jason T Nelson, 10 Over Jordan Road
Richard England, 4 Over Jordan Road
172 Great Neck Road
Continental Marina Corp., 3236 Cranberry Hwy
Letter from DFM dated 4/17/24